

# M/S T.K.S Production Pvt. v. State of U.P. and Others

High Court of Judicature at Allahabad · Division Bench · 30 May 2022 · Writ-C No. 8499 of 2022 · **Disposed with liberty to object under Para 6.5.**

## HEADNOTE

Writ seeking certiorari against a 2019 recovery certificate for Rs. 7,97,757 was disposed of without any opinion on merits. The petitioner was given liberty to submit an objection under Para 6.5 of the U.P. Electricity Supply Code, 2005 before the distribution licensee within four weeks, to be decided within four weeks after hearing. Coercive action on the demand was stayed for eight weeks or until disposal of the objection, whichever is earlier.

## FACTUAL SUMMARY

The petitioner, M/S T.K.S Production Pvt., approached the Allahabad High Court for a writ of certiorari to quash Recovery Certificate No. 0120191117038391 of 2019 demanding Rs. 7,97,757, issued by the Executive Engineer, Electricity Distribution Division 5th, Bulandshahar. Respondent no. 3 is the power distribution corporation. Its counsel stated on instructions that the petitioner could file an objection to the impugned demand and that the objection would be decided in accordance with law within a time-bound period.

## HOLDING-UNITS

### HOLDING-UNIT · UP-2005::6.5

objection to a disputed recovery demand

#### HOLDING

The writ is disposed of without any opinion on merits, with liberty to the petitioner to submit, within four weeks, an objection under Para 6.5 of the U.P. Electricity Supply Code, 2005 before respondent no. 3 together with a certified copy of the order. If submitted in time, respondent no. 3 shall decide the objection in accordance with law within the next four weeks after a reasonable opportunity of hearing. For eight weeks, or until disposal of the objection, whichever is earlier, no coercive action shall be taken on the impugned demand. ¶ 1

## PRINCIPLE TAGS

**clause-6.5-alternate-remedy-to-writ** A writ to quash a recovery certificate was disposed without touching the merits, and the consumer was left to file a Para 6.5 objection before the distribution licensee within four weeks. ¶ 1

**clause-6.5-statutory-remedy-disputed-bill** The disputed recovery demand of Rs. 7,97,757 was treated as a matter for a time-bound objection under Para 6.5, to be decided by the licensee after hearing. ¶ 1

## NOT DECIDED — NEGATIVE AUTHORITY

**NOT DECIDED — WHETHER RECOVERY CERTIFICATE NO. 0120191117038391 AND THE DEMAND OF RS. 7,97,757 ARE CORRECT.**

The Court expressed no opinion on merits and left the demand to a Para 6.5 objection before respondent no. 3. ¶ 1